

SILVERIO ROSALES vs. MAIN ELECTRIC SUPPLY COMPANY LLC; ET AL.
Case No. CU23-02346

Plaintiff's Motion to Compel

TENTATIVE RULING

The Parties are to appear.

LUCIA ACEVES VILLALOBOS vs. GENERAL MOTORS, LLC.
Case No. CU23-03523

Motion for Attorney's Fees;
Motion for Tax Costs

TENTATIVE RULING

Motion to Tax Costs

The matter was on calendar July 7, 2027 and the Parties appeared through Counsel. The Parties submitted on the Court's tentative ruling below.

Defendant's motion to tax costs is denied in part and granted in part.

Items in a memorandum of costs are prima facie evidence of their propriety if they appear on their face to be appropriate charges. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) The burden is on the party seeking to strike or tax costs to show that the items were not reasonable or necessary. (*Acosta v. SI Corp.* (2005) 129 Cal.App.4th 1370, 1380; *Ladas v. Cal. State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774.) A party seeking to strike or tax costs must submit evidence demonstrating that the costs were either unnecessary or unreasonable. (*Jones*, 63 Cal.App.4th at 1266; *County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113.)

Defendant has not met its burden of demonstrating that the costs claimed for filing fees and service of process fees were not reasonable or necessary. Plaintiff prevailed on both discovery motions for which filing fees are sought and both motions were necessitated by Defendant's attempt to unilaterally narrow the scope of Plaintiff's claims. Service of process fees are explicitly authorized by statute (Code Civ. Proc. § 1033.5(a)(4)) and Defendant presents no evidence to suggest that the fees were not actually incurred or unnecessary to the conduct of the litigation. The Defendant's motion to tax filing fees and service of process fees is denied.

Mediation fees may be awarded in the court's discretion. (*Berkeley Cement Inc. v. Regents of University of California* (2019) 30 Cal.App.5th 1133, 1140. Where Plaintiffs in Song Beverly cases benefit greatly from mediation resulting in a high number of